

Ram Prasad v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 September 2017 · Writ-C No. 44843 of 2017 · **Writ disposed; petitioner relegated to Executive Engineer under clause 6.5(b).**

HEADNOTE

A consumer disputing the accuracy of an electricity bill and recovery of outstanding dues must complain to the Executive Engineer under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. After an earlier writ had already granted that liberty, the High Court declined to entertain a second petition on the same billing grievance and left the petitioner to approach the Executive Engineer.

FACTUAL SUMMARY

Ram Prasad, a consumer of Paschimanchal Vidyut Vitran Nigam Ltd., had earlier challenged recovery of alleged outstanding electricity dues and the correctness of the bill in Writ Petition No. 21942 of 2016. That petition was disposed of on 12 May 2016 with liberty to complain under clause 6.5(b) of the U.P. Electricity Supply Code, 2005, and with a short stay of recovery. He returned complaining that no action had been taken and that bills continued to be raised as earlier.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy-complaint

HOLDING

Where the consumer disputes the accuracy of the electricity bill and recovery of outstanding dues, the proper forum is a complaint before the Executive Engineer under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. A second writ repeating the same billing grievance after an earlier disposal with liberty to complain under clause 6.5(b) will not be entertained; the petitioner remains free to approach the Executive Engineer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILL, THE RECOVERY DEMAND, AND ALLEGED INACTION ON THE EARLIER CLAUSE 6.5(B) COMPLAINT

The writ was not entertained; the consumer was left to approach the Executive Engineer. ¶ 1